

June 15, 2026
Dept. 9
Probate Tentative Rulings

5.	24PR0065	ESTATE OF JAMES HAYNES
PETITION FOR FINAL DISTRIBUTION ON WAIVER OF ACCOUNTING, AND FOR DISCHARGE		

Letters of Administration/Letters Testamentary were issued on **May 20, 2026**, granting Petitioner full authority under the Independent Administration of Estates Act.

An Inventory and Appraisal was filed on January 14, 2026. However, the inventory and Appraisal has no values or breakdown. It states nothing other than a total value of the estate without explanation of \$263,191.18. The court also does not have a copy of the will. The petition listed four beneficiaries, but the distributions alleged are to only two individuals.

No Waivers of Account **or Waivers of Notice** were executed by the heirs entitled to distributions under the estate except the Petitioner.

Proof of Service of Notice of the hearing on the Petition was not filed.

Per Local Rule 10.07.12 Petitions for final distribution must include a report of the following:

1. That no federal or California estate taxes are payable or that they have been paid;
2. That income taxes and all other taxes (e.g. supplemental real property taxes or personal property taxes, if any, have been paid or otherwise provided for.

If estate taxes are payable or paid: 1) the petition shall set forth whether said taxes were prorated pursuant to Probate Code section 20100, et seq., or the provisions of the will; and 2) the petition must reflect whether or not there are non-probate assets includable in the gross estate for estate tax purposes.

TENTATIVE RULING #5: APPEARANCES ARE REQUIRED AT 8:30 A.M. ON MONDAY, JUNE 15, 2026, IN DEPARTMENT NINE.

A STATUS OF ADMINISTRATION HEARING IS SET FOR 8:30 A.M. ON MONDAY, JUNE 14, 2027, IN DEPARTMENT NINE. PETITIONER OR COUNSEL ARE ORDERED TO PERSONALLY APPEAR, OR FILE A STATUS UPDATE WITH THE COURT AT LEAST TWO WEEKS BEFORE THAT HEARING.